

Disengaging with the courts prevents momentum -- devastates social change.

Douglas NeJaime 13, Associate Professor of Law at Loyola Law School, "Constitutional Change, Courts, and Social Movements," *Michigan Law Review*, April, Vol. 111, https://digitalcommons.law.yale.edu/fss_papers/5222/

- Courts serve not only as venues for mobilization but also as sites of contestation and conflict. Social movement work on movement—countermovement struggles demonstrates the need for movement activists to meet their adversaries on all relevant battlegrounds.⁷² If one movement is pushing its agenda in the courts, it is nearly impossible and also ill advised for the opposing movement to surrender that territory. Courts, therefore, provide venues in which to contest constitutional meanings that relate to and signify broader political and moral commitments. Here, scholarship examining the impact of movement—countermovement struggles on frames could be applied to court-based interactions to better understand how constitutional and political meanings change through movement conflict.⁷³ Professor Shauna Fisher, for instance, analyzes the impact of movement—countermovement dynamics on the frames surrounding marriage for same-sex couples. She finds that while marriage equality proponents deploy "rights" frames, their opponents invoke "public" and "judges" frames to contest judicial authority over same-sex couples' claims.⁷⁴ That is, marriage equality opponents frame rights in ways that argue against substantive judicial resolution even as they engage courts, meeting their adversaries at every turn. Both sides attempt to define the relevant stakes, and neither will surrender an opportunity to contest and supplant its opponent's framing. The framing contest, occurring both in and out of court on specifically constitutional terms, directly impacts policymaking. As Fisher concludes, "In a policy conflict, groups' issue definitions do not win or lose on their own merits but do so relative to other alternatives."⁷⁵

No state circumvention or encroachment on federalism – federal oversight is normal means – especially in the context of civil litigation

Buade William 18, Professor of Law at the University of Chicago Law School, 2018, "'Is Qualified Immunity Unlawful?'" *California Law Review* 106.1 (2018): 45-90. Web, https://search.library.northwestern.edu/permalink/f/b6k21d/TN_proquest2033753197 amb

- Another concern with this approach is that it inappropriately mixes federal and state law. There is a long and well-justified tradition in the field of constitutional torts of keeping state and federal law separate, and by relying on state law to measure an officer's fault, this approach would seem to violate this tradition. As explained below, however, this approach does not seriously violate that tradition.
- There are two aspects to the tradition, one that applies in cases against state officers and one that applies in cases against federal officers. In the state officer context, the tradition is most clearly stated in Monroe v. Pape (though earlier cases expressed the same point ⁶⁸): It is [irrelevant to the availability of a § 1983 action] that the State has a law which if enforced would give relief. The federal remedy is supplementary to the state remedy, and the latter need not be first sought and refused before the federal one is invoked. Hence the fact that Illinois by its constitution and laws outlaws 'unreasonable searches and seizures is no barrier to the present suit in the federal court.⁶⁹
- Monroe thus reiterated the basic rule that federal constitutional rights are fully enforceable without regard to the existence or nonexistence of a state law violation. Importantly, however, Monroe's chief concern was not that state law was too weak or biased, but rather that "state agencies," whether because of "prejudice, passion, neglect, intolerance or otherwise" might fail to enforce state law.